

Towards a Global Pact for the Environment: Some Legal Reflections

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I. INTRODUCTION

Law-making regarding the environment has been in process for almost fifty years; as widely agreed, the 1972 Stockholm Conference triggered a global regulatory process. Not only did it end up producing the celebrated Stockholm Declaration,¹ which may be considered the founding act of environmental law, but it also was followed by many other important instruments: the 1972 World Heritage Convention² and the 1973 Convention on International Trade in Endangered Species of Wild Fauna and Flora³ are some examples. Consequently, it is a field that could be considered to be newly built; it was created to respond to modern needs and recent developments. But, even if these laws are truly necessary, humanity should primarily understand another important reality: that there are other laws that are equally considerable. They are the fundamental laws of nature, which have been violated for almost one hundred years in the name of progress—or, in fact, in the name of profit. And, despite the definitely striking disproportionate place of humankind on Earth (only 0.01 percent of the total biomass of the planet),⁴ its destructive impact is indisputable. Humans, who have proven to be extremely efficient in exploiting natural resources, have culled and, in some cases, eradicated, wild mammals for food or pleasure on virtually all continents.⁵ Since the rise of the human civilization, 83 percent of wild mammals have been lost, which is a tremendous disaster for the balance of the ecosystems.

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¹ Stockholm Declaration on the Human Environment, 1972, 11 ILM 1416 (1972) [Stockholm Declaration].

² Convention on Migratory Species of Wild Animals, 1979, 1651 UNTS 333.

³ Convention on International Trade in Endangered Species of Wild Fauna and Flora, 1973, 993 UNTS 243.

⁴ Damian Carrington, 'Humans Just 0.01% of All Life but Have Destroyed 83% of Wild Mammals—Study' *Guardian* (21 May 2018) <www.theguardian.com/environment/2018/may/21/human-race-just-001-of-all-life-but-has-destroyed-over-80-of-wild-mammals-study>.

⁵ Yinon M Bar-On, Rob Phillips, and Ron Milo, 'The Biomass Distribution on Earth' (2018) 115 PNAS 6506.

This tragedy has triggered many law-making efforts for the protection of the environment. Until today, these efforts were fragmentary and unilateral; most of the treaties regulate certain sectors of the environmental challenge, such as climate change, desertification, marine protection, or air pollution. Since this mentality has proven not to be very successful, a new initiative rose in 2007; the French legal think tank Le Club des Juristes—a gathering of the most prominent jurists of the world— independently started a series of debates and legal propositions on the most controversial questions of the law (*‘un lieu indépendant de débats et de propositions juridiques’*).⁶ Among all of the subjects that the Club des Juristes has discussed, environmental concerns have an outstanding position. The Club des Juristes called for the nations to act on behalf of the environment⁷ and proposed a legal tool with a universal approach; it was the first time that an instrument considering the environment *in globo* was introduced.

This instrument was the **Global Pact for the Environment (Global Pact)**, which served as the flagship of the French think tank. Not only was it advocated by the French government and by Président de la République Emmanuel Macron during the launching summit (*sommet de lancement*) back in 2017 on the sidelines of the United Nations General Assembly (UNGA) in New York,⁸ but it was also seized by the European Commission, which sought a mandate from member states to negotiate the Global Pact.⁹ The Commission characterized the procedures leading to the adoption of the Global Pact as ‘a fresh opportunity to consolidate key environmental principles in one international text,’¹⁰ and it reminded the community that the European Union has some of the most advanced and comprehensive environmental policies in the world. Ultimately, on 10 May 2018, the UNGA adopted, by an overwhelming majority, a resolution that paved the way for the negotiations on a Global Pact for the Environment, as will be examined later in this article.

⁶ See Club des Juristes <www.leclubdesjuristes.com/qui-sommes-nous/>.

⁷ See Nicholas A Robinson et al, ‘Appel de la Sorbonne pour l’adoption d’ un Pacte mondial pour l’environnement’ *Le club des juristes* (15 May 2019) <www.leclubdesjuristes.com/les-juristes-du-monde-appellent-les-etats-a-agir/>.

⁸ See Club des Juristes, *Présentation du Pacte mondial pour l’environnement devant les Nations Unies par le Président de la République le 19 Septembre* (13 September 2017) <www.leclubdesjuristes.com/presentation-pacte-mondial-lenvironnement-devant-nations-unies-president-de-republique-19-septembre/>.

⁹ See Club des Juristes, *L’UE s’empare du Pacte Mondial pour l’environnement du Club des juristes* (20 March 2018) <www.leclubdesjuristes.com/pacte-mondial-lenvironnement-devant-lunion-europeenne/>.

¹⁰ European Environment, Maritime Affairs and Fisheries Commissioner Karmenu Vella made this statement. See New Europe Online/KG, ‘Vella Says EU Must Maintain the Momentum of Its Environmental Work’ *New Europe* (20 May 2019) <www.neweurope.eu/article/eu-seeks-global-environmental-pact>.

II. NORMATIVITY: AN OPTION FOR ENVIRONMENTAL LAW

1. Interplay of Hard and Soft Law

For many years, international environmental law followed a legal paradox compared to general international law. While the legal production of soft law texts was galloping along, the respective production of binding documents was merely limping. The oxymoron of this situation would be obvious if someone bore in mind the need for international environmental law to be flexible and resilient. On the other hand, this trend also created another ‘kind of normativity’—that is, numerous statements, declarations, and resolutions with a legal value that are widely accepted as being debatable.¹¹

The origin of international normativity, of course, is the notorious Article 38 of the Statute of the International Court of Justice (ICJ Statute), which mentions the three formal sources of international law: the manifestations of the rights and obligations of states, on which the International Court of Justice (ICJ) can base its decisions to settle the disputes submitted to it.¹² As stated, the article in question is ‘déclaratoire [du droit international général] en matière de sources.’¹³ And, despite the fact that members of the academic community state that the article has lacunae or that it sometimes may be deemed to be ‘truncated’¹⁴ or ‘outmoded,’ Article 38 has mostly served its purpose of providing the court with a basis for its decisions.¹⁵ The three sources listed in the ICJ Statute are (i) international conventions; (ii) international custom, as evidence of a general practice accepted as law; and (iii) the general principles of law. As one can easily detect, it is a strict classification applying specific criteria—once a legal document does not fulfill them, it cannot be considered as a source of international law.

A. ‘Environmental’ Normativity

Through the years, the need for adaptability in the field of environmental law has led to the application of the so-called ‘flexible standards.’ Thus, along with

¹¹ Club des Juristes, *White Paper: Toward a Global Pact for the Environment* (2017) at 29 [Club des Juristes, *White Paper*].

¹² Statute of the International Court of Justice, 1945, 1 UNTS 993. Alain Pellet, ‘Article 38’ in Andreas Zimmermann et al, eds, *The Statute of the International Court of Justice: A Commentary* (2012) 731 at 761.

¹³ Georges Abi-Saab, ‘Les sources du droit international: essai de déconstruction’ in *International Law in an Evolving World: Liber Amicorum Jiménez de Aréchaga* (1994) 29 at 36.

¹⁴ Pierre-Marie Dupuy, ‘La Pratique de l’Article 38 du Statut de la Cour Internationale de Justice dans le cadre des plaidoiries écrites et orales’ in United Nations, ed, *Collection of Essays by Legal Advisers of States, Legal Advisers of International Organizations and Practitioners in the field of International Law* (1999) 377 at 379.

¹⁵ Eric Suy, ‘Unilateral Acts of States as a Source of International Law: Some New Thoughts and Frustrations’ in N Angelet, ed, *Droit du pouvoir, pouvoir du droit: Melanges offerts à Jean Salmon* (2008) at 631.

international conventions, environmental law has adopted a wide range of acts that were not legally binding, as they were missing the traditional characteristics of international law emanating from one of the formal sources of Article 38. But the fact that states have accepted soft law principles not only has negative aspects. It also facilitates, in fact, the formation of international customary norms. A customary norm is composed of two distinct elements: the 'material' or 'objective' element, represented by state practice, and the 'psychological' or 'subjective' element—that is, *opinio juris*.¹⁶ The existence of these two elements is a strong indication that the state has conducted an act because it has the conviction of being compulsory.

With respect to 'soft' instruments, it has often been stated that the cumulative enunciation of the same guideline by numerous non-binding texts helps to express the *opinio juris* of the world community.¹⁷ This observation, although different in character, should be viewed in light of the one made in 1986 by the ICJ with regard to several important resolutions adopted by the UNGA: 'The effect of consent to the text of such resolutions . . . may be understood as an acceptance of the validity of the rule or set of rules declared by the resolution by themselves.'¹⁸ One should certainly not systematically go this far in interpreting the frequent repetition of 'soft' rules in different kinds of texts. However, it is likely that, through this notion, a new '*opinio juris*' has emerged among nations thanks to the frequent reiteration of certain identical principles. Many customary principles have been recognized in regard to international environmental law. The ICJ has identified the customary status of the no-harm principle in its advisory opinion in *Legality of the Threat or Use of Nuclear Weapons*¹⁹ and has acknowledged the obligation to conduct an environmental impact assessment as customary in *Pulp Mills on the River Uruguay* case.²⁰

Several fundamental principles are also contained in many soft law texts. For example, it is widely known that the principle of sustainability was first included in the Rio Declaration in 1992,²¹ and the right to an ecologically sound environment was first mentioned in the Stockholm Declaration.²² On the flip side of the coin, these principles, incorporated in such texts, lack legal force, and their status remains simply declaratory. The purpose of the Global Pact that was launched in 2017 is to codify these principles in a legally binding instrument.²³

¹⁶ Pellet, *supra* note 13 at 814.

¹⁷ Pierre-Marie Dupuy, 'Soft Law and the International Law of the Environment' (1990) 12 Michigan J Intl L 432.

¹⁸ *Case Concerning Military and Paramilitary Activities In and Against Nicaragua (Nicaragua v United States of America)*, Merits, [1986] ICJ Rep 14 [*Military Activities*].

¹⁹ *Legality of the Threat or Use of Nuclear Weapons*, Advisory Opinion, [1996] ICJ Rep 226 [*Nuclear Weapons*].

²⁰ *Pulp Mills on the River Uruguay (Argentina v Uruguay)*, Judgment, [2010] ICJ Rep 14 [*Pulp Mills*].

²¹ Rio Declaration on Environment and Development, 1992, 31 ILM 874 (1992) [Rio Declaration].

²² Stockholm Declaration, *supra* note 1.

²³ Club des Juristes, *White Paper*, *supra* note 12.

The drafters of the Global Pact strongly declared their intention to launch an instrument of 'hard' law. It has been argued and widely felt among scholars that, since these principles have been crystallized over a very long period, the time has arrived for them to be vested with binding force.

On the other hand, one should not overlook the indisputable fact that the function of an instrument in the hands of a state defines its normative performance; the outcome it produces weighs far more than its form or title. Numerous examples in international law include texts that have been launched as 'treaties' or 'agreements' but which have not had the normative echo that the signing states had anticipated. Most of the multilateral environmental agreements (MEAs) that the international society has adopted so far have proven to have comprised soft obligations at their core, despite the fact that they belong to the so-called 'hard law.'²⁴ This fact is a direct consequence of the process by which these agreements are set in force—namely, that MEAs are concluded as framework agreements, which provide the skeleton of the regulations that will be 'fleshed out' later on, according to the states' readiness and the level of scientific certainty in the field.²⁵

Since these agreements have to accommodate different and, many times, competing interests, it is more convenient to have a form that will allow the text to evolve and unfold, shifting to the next level of normativity when the conditions mature. This scenario is evidence that it is not the title of the legal instrument but, rather its use that is essential; it is possible for treaties to have a 'soft belly' and for declarations or resolutions to have a significant normative halo around them,²⁶ enough for a change in state practice to be noted. The form is never a barrier, as has been proven many times in international law and sometimes even by the ICJ itself.²⁷

(i) Environmental concerns: redefining the landscape of the sources

Since, as we underscored, environmental law mainly consists of soft law elements, it is worth referring to its law-making process. In this process, the UNGA holds a central position; it has played a catalytic role in the launching of various global regulatory frameworks and has intervened in the direction of new legal solutions. Most recently, the UNGA voted for the adoption of the Global Pact through its Resolution 72/277.²⁸ According to the resolution's text, the UNGA

²⁴ Bharat H Desai, *Multilateral Environmental Agreements: Legal Status of the Secretariats* (2010) at 69–75.

²⁵ Bharat H Desai, *Institutionalizing International Environmental Law* (2003) at 109.

²⁶ *Ibid* at 115.

²⁷ See eg *Military Activities*, *supra* note 19.

²⁸ UNGA Resolution: Towards a Global Pact for the Environment, Doc A/RES/72/277 (10 May 2018).

has decided to establish an ad hoc open-ended working group to consider a technical and evidence-based report that identifies and assesses possible gaps in international environmental law and environment-related instruments with a view to strengthening their implementation in order to facilitate the adoption of the Global Pact for the Environment.²⁹

The working group held its first meeting on 14–18 January 2019, its second meeting on 18–20 March, and its last meeting on 20–2 May 2019, all in Kenya, Nairobi. In the first session, many conversations were held on the gaps in international environmental law and on the different options to fill these gaps; the proposition of Global Pact was not the main focus of this discussion. It was in the second session where the Global Pact was discussed more intensively, wherein, the conversation shifted from a previous reflection focused primarily on the report of the United Nations (UN) Secretary-General to a broader and constructive discussion on possible options to improve the effectiveness of international environmental law. Finally, the last session led to a unanimous, but controversial, outcome, and the intervention that resulted was of minor importance. As the summary of the session indicated, the working group concluded the decision to recommend to UNGA to ‘forward the recommendations to UNEA [United Nations Environment Assembly] for its consideration, and to prepare . . . a political declaration for a UN high-level meeting . . . with a view to strengthening the implementation of IEL, and international environmental governance in line with paragraph 88 of the *Future We Want*.’³⁰

In other words, it resorted to the solution of a political statement, instead of a more acute choice, and urged the UNGA to proceed to another soft law document, instead of what many members of the international society expected and wished for.³¹ Many scholars were also disappointed by the outcome since they had anticipated a more appropriate reaction of the ad hoc group to the formed reality. As this final decision has serious implications, the question remains: is it possible to make an effective use of a political declaration that could be adopted by the United Nations Environment Assembly (UNEA) in 2021 and by a UNGA resolution in 2022?

²⁹ See Civil Society Events: Towards a Global Pact for the Environment, 18–20 March 2019, Nairobi, Kenya <www.unenvironment.org/events/conference/towards-global-pact-environment>.

³⁰ ‘Summary of the Third Substantive Session of the Ad Hoc Open-ended Working Group towards a Global Pact for the Environment: 20–22 May 2019’ (2019) 35 Earth Negotiations Bulletin 10.

³¹ Yann Aguila, a member of the Club des Juristes, clarified in September 2018 that the question that would be debated by the open-ended working group in 2019 was whether a Global Pact is needed, but not yet what should be the content of it. Still, it denotes the high expectations that the club had from these meetings. See Nathalie Risse, ‘Experts, Stakeholders Discuss Added Value of Global Pact for the Environment’ (27 September 2018) <<http://dg.iisd.org/news/experts-stakeholders-discuss-added-value-of-global-pact-for-the-environment/>>.

The UNEA is the world's highest-level decision-making body on the environment, addressing the critical environmental challenges facing the world today.³² It is also the main organ for producing soft law instruments that call for action on the field of the environment. It has adopted many resolutions responding to the main environmental problems of our world, such as desertification,³³ sustainable development,³⁴ oceans and seas,³⁵ and the preservation of wildlife.³⁶ It serves as the plenary organ of UNEP,³⁷ which has progressively developed a large number of environmental law texts, according to its mandate to 'promote international co-operation in the field of the environment and to recommend, as appropriate, policies to this end.'³⁸ UNEP has also played a leading role in the promotion of many regional conventions and, surprisingly, has also evolved into a standing structure for negotiating draft resolutions sent to the UNGA. At the UNGA, UNEP's exhortations have been either passed with no change or expressly referred to in its resolutions. It has the competence for drawing up the reports presenting the annual findings on the global status of nature, and it gives the main directions by suggesting policies and strategies. Through these actions, the central issues of environmental concern are charted, and the road to a possible solution is paved.

Of course, these texts, as UNGA resolutions, are not strictly regulative. Their language is hortatory, inspirational, and indeterminate, if not simply declaratory. But their importance cannot be downgraded. They are texts that incorporate the intention of states to act,³⁹ and this intention is a material element without which an agreement would be considered as 'sans portée juridique.'⁴⁰ The difference, in other words, lies in the effect that the states aim for the instrument to have. If the parties do not will the international agreement to bring obligations and rights, then the text is rendered void of legal effect. If, on the other hand, the states negotiate the agreement bearing in mind that they will be bound—at any level—by it, it is this volition that equips the text with a regulative force. It is really impressive that this volition is obvious in the cases where the states invoke vividly the agreements and the commitments emanating from them, even if the

³² Bharat H Desai, 'The Advent of the United Nations Environment Assembly' (2015) 19(2) *American Society of International Law Insights* <www.asil.org/insights/volume/19/issue/2/advent-United-nations-environment-assembly>.

³³ See eg UNEP Resolution on Combating Desertification, Land Degradation and Drought and Promoting Sustainable Pastoralism and Rangelands, Doc UNEP/EA.2/Res.24 (23–7 May 2016).

³⁴ See eg UNEP Resolution on Sustainable Consumption and Production, Doc UNEP/EA.2/Res.8 (23–7 May 2016).

³⁵ See eg UNEP Resolution on Oceans and Seas, Doc UNEP/EA.2/Res.10 (23–7 May 2016).

³⁶ See eg UNEP Resolution on Illegal Trade in Wildlife and Wildlife Products, Doc UNEP/EA.2/Res.14 (23–7 May 2016).

³⁷ Bharat H Desai, 'UNEP: A Global Environment Authority?' (2006) 36 *Env'tl Pol'y & Law* 137.

³⁸ UNGA Resolution 43/53, adopted without vote, on 6 December 1988; see PW Birnie and AE Boyle, *Basic Documents on International Law and the Environment* (1995) at 248–51, paras 1–2.

³⁹ Desai, *supra* note 26 at 112.

⁴⁰ *Advisory Opinion on International Status of South-West Africa*, [1950] ICJ Rep 128 at 140.

regimes established by them are not complete and if they evolve gradually. The latter is a really common phenomenon in the field of environmental law, where the scientific data are flowing with great frequency, and the experts' estimations may have changed during the course of the implementation of the agreement. As Malgosia Fitzmaurice has noted, '[e]nvironmental law covers events which are characterized by very speedy changes and by the need for prompt response to environmental crises.'⁴¹

In these cases, the parties must try to make a basis for an evolving normative process, by reaching a consensus even if the problem that the text regulates is still changing. The states, in these cases, include in the provisions of the instruments an amount of 'calculated ambiguity'⁴² and a number of 'mixed signals,' which behave as 'safety valves' for the parties. In this way, the states can adapt their reactions depending on their economic, political, and strategic choices and follow their own pace, waiting for the normativity to harden.

As a result, it becomes self-evident that the nature of these legal texts appears to be permissive, but what must be stressed is that states have chosen to make it permissive. There are not norms of various degrees of persuasiveness;⁴³ it is generally accepted that the hardness or softness of a law does not affect its normative character.⁴⁴ It is the duty of the states to handle these instruments in a certain way in order for the various results to be achieved—from a heavily regulative framework to a simply transitory stage to the normative threshold, with the expectation that it will transform to a 'requirement.'

(ii) Advantages of a binding legal text

The progressive crystallization of soft law norms is an indicator of their authority, which should now be formally recognized. A treaty enclosing this kind of law would be the greatest recognition, and this treaty may be the proposed Global Pact. Through the Global Pact, a transposition of these principles into legal obligations would be achieved—thus, international environmental law would gain legal certainty and legibility. At this point, what needs to be highlighted is that there is a huge range of treaties. On the one side of the normative continuum, there are the treaties that, having a hard law character, are the framework conventions or protocols. On the other end of the spectrum, there are the non-legally binding instruments that are mostly politically acceptable by states. Their content matters more than their form, and sovereign states prefer this 'latitude' and flexibility in their implementation. There is a whole panorama

⁴¹ Malgosia Fitzmaurice, 'International Environmental Law: Sources, Formation and Kinds of Legal Rules' (2001) 245 *Recueil des Cours de l'Académie de Droit International* 96.

⁴² Oscar Schachter, 'The Twilight Existence of Nonbinding International Agreements' (1977) 71 *AJIL* 297.

⁴³ RR Baxter, 'International Law in Her Infinity Variety' (1980) 29 *ICLQ* 549.

⁴⁴ Prosper Weil, 'Towards Relative Normativity in International Law?' (1983) 77 *AJIL* 53.

of normativity in the field of environmental law, but the treaties that provide for justiciable rights offer the most complete legal protection since they arm their content with the possibility of judicial intervention.

And this is the most important result that the transposition of environmental principles will achieve—namely, the fact that environmental law will become justiciable. Since the fundamental principles of environmental protection will be included in a treaty, it will be possible for them to be invoked before a judge. By applying a binding Global Pact, domestic courts will have the possibility of monitoring the application of environmental law through the compliance of national laws to the Global Pact. Many states have included in their Constitutions such legal principles,⁴⁵ but the references are very limited. Instead, an extensive catalogue of all of the ruling principles would be extremely useful for the consolidation of the legal edifice of environmental law. However, the national judicial review of compliance with the Global Pact and its procedures remain issues that are mainly national, which are delicate to deal with within the pact itself given the diversity of the domestic legal systems.

International adjudication of environmental claims would likely improve compliance, but enforcing compliance has been a sensitive matter, mostly because it involves the matter of the sovereignty of the states concerned. This has led to the suggestion of creating new judicial institutions with compulsory jurisdiction over environmental disputes in order to facilitate the enforcement of the right to a healthy environment and of states' duty to take care of the environment. The Club des Juristes has expressed its approval of the creation of specific new monitoring bodies for the effectiveness of international environmental governance.⁴⁶ It is widely known that the existing institutions cannot achieve compliance since they lack the requisite power to penalize non-compliant states. The administrative body that will monitor the implementation of the Global Pact would be useful since many states may have the will to apply the Global Pact, but they do not have the resources or the institutional capacity to do so.⁴⁷

In addition, for enhancing environmental governance, many scholars have supported the idea of the establishment of an International Court for the Environment, with a mandate similar to the European Court of Human Rights. It is important to note that any efforts to promote such kind of institution should not come at the expense of thoughts to strongly encourage or even require parties to codify the Global Pact's principles within domestic law, thereby

⁴⁵ See eg the provisions of the Chilean, Colombian, Turkish, Kenyan, Hungarian, and Spanish constitutions.

⁴⁶ Club des Juristes, *Report: Increasing the Effectiveness of International Environmental Law* (2016) <www.leclubdesjuristes.com/report-increasing-the-effectiveness-of-international-environmental-law-duties-of-states-rights-of-individuals/>.

⁴⁷ Global Pact for the Environment, Preliminary Draft (2017), art 21 <<https://globalpactenvironment.org/uploads/EN.pdf>>.

leveraging domestic legal systems to enforce a right to a healthy environment, along with other principles commonly included in soft law instruments. Allowing for domestic enforcement of the Global Pact's provisions would also emphasize the notion that the Global Pact aims to act as a treaty not only among states but also between states and their citizens, having the 'horizontal effect' of a human rights treaty.⁴⁸ In addition, the provision for a right to a healthy environment included in the Global Pact would encourage such an interpretation.

(iii) The disadvantages of the paradigm shift

Pointing out that 'it would not necessarily be advantageous to turn non-legally binding principles into legally binding ones,' Columbia law professor Susan Biniaz argues that, while principles like the precautionary principle are useful as considerations, they would create 'confusion' if converted into hard law.⁴⁹ Others might approach such conversions more favourably but worry that incorporating strict commitments into the Global Pact might hurt its ability to attract broad participation.⁵⁰ I do not share these views since the time for the next step has come, and this step would entail positive developments for environmental governance.

III. TOWARDS A GLOBAL PACT FOR THE ENVIRONMENT

1. Why a Pact?

With respect to a high-level, environment-centred instrument, many efforts have been made before: from the panegyric, grandiose declarations of Stockholm and Rio, to the more spiritual, ethically oriented Earth Charter, the contributions in the environmental field, which have sought to safeguard the human habitat, are numerous and impressive. They are characterized mainly by inspirational language and formal wording,⁵¹ depicting not only universally accepted ideas but also high expectations. Although they recognize the problems and urge for action, the defect of all of these instruments is their legal nature; all of the above are soft law examples, echoing widely accepted notions but limited in the level of suggestions.

Since Earth and its biosphere have been maltreated systematically, the mild solutions provided in the aforementioned soft law documents have not sufficed.

⁴⁸ Murray Hunt, 'The 'Horizontal Effect' of the Human Rights Act' (1998) 62 Public Law 437.

⁴⁹ Susan Biniaz, '10 Questions to Ask about the Proposed Global Pact for the Environment,' Columbia Law School Sabin Center for Climate Change Law (2017).

⁵⁰ Teresa Parejo Navajas and Nathan Lobel, 'Framing the Global Pact for the Environment: Why It's Needed, What It Does, and How It Does It' (2018) 30 Fordham Envtl L Rev 32 at 57.

⁵¹ See eg the preamble of the Rio Declaration, *supra* note 22.

The interactive relation between humankind and its environment has always been recognized. What has not been recognized so far is the fact that the arrival of the Anthropocene requires a complete rethink of how we use law to mediate the human–environment interface.⁵² In the current world, it is highly doubted that the ongoing degradation of the environment and its deteriorating state can be addressed effectively through the existing legal instruments; in 2018, climate change has shown its devastating impact with heatwaves, wildfires, and huge floods all around the world.

On the other hand, it is an undisputable fact that a legal instrument *per se* cannot prevent environmental deterioration, especially if states do not take serious action and rigidly follow narrow national interests. In this sense, what matters most at the end of the day is the application of any instrument (soft or hard) by states—the Kyoto Protocol example confirms this theory.⁵³ Despite the fact that the Kyoto Protocol was a wholly binding instrument, a number of countries discarded it so that it practically was rendered useless.⁵⁴ This is the importance of states' will as it goes beyond the label of 'hard' or 'soft.'

And, despite the fact that 'climate extremes tend to be the new normal,' the necessary and appropriate international legal response remains unclear.⁵⁵ Maybe the time has come for a *Lex Anthropocenae*, which 'hints at a transformed type of law grounded in and focused on the entire Earth.'⁵⁶ A Global Pact for the Environment, according to its proposers, has come to fill this gap: it is destined to be the response to the 'strong expectation from the legal community to see the foundations of environmental regulation systematised in a single instrument at an international level.'⁵⁷

By choosing the form of a pact for the *Lex*, its drafters are hoping to convey the message that any ethically weak, soft normativity attempts would be avoided.⁵⁸ This specific legal form has been a kind of formality in international

⁵² Louis Kotzé, 'Human Rights and the Environment in the Anthropocene' (2014) 1 *Anthropocene Review* 252.

⁵³ Kyoto Protocol to the United Nations Framework Convention on Climate Change, 1998, 37 *ILM* 32 (1998).

⁵⁴ The countries included in Annex I of the Kyoto Protocol—that is, the industrialized countries that were members of the Organisation for Economic Co-operation and Development in 1992, plus countries with economies in transition (including the Russian Federation, the Baltic States, and several Central and Eastern European States) refused to apply the instrument.

⁵⁵ Patrick Verkooijen, Global Center on Adaptation chief executive officer, the Netherlands, 'We Are the Last Generation That Can Stop Climate Change' *The Guardian* (3 December 2018) <www.theguardian.com/environment/2018/dec/03/we-are-last-generation-that-can-stop-climate-change-un-summit&usg=AOvVaw3hZK-aO2kV9K_wj3xUfMdQ>.

⁵⁶ Klaus Bosselmann, 'Shifting the Legal Paradigm: Earth-Centred Law and Governance' in P. Magalhães et al, eds, *The Safe Operating Space Treaty: A New Approach to Managing Our Use of the Earth System* (2016) 64.

⁵⁷ Club des Juristes, *White Paper*, *supra* note 12 at 23.

⁵⁸ Louis J Kotzé and Duncan French, 'A Critique of the Global Pact for the Environment: A Stillborn Initiative or the Foundation for *Lex Anthropocenae*?' (2018) 18 *Intl Env'tl Agreements* 811 at 814.

law since the dawn of the twentieth century. The most famous example is that of the Kellogg-Briand Pact, signed on 27 August 1928.⁵⁹ And it is really interesting that this pact was linked to formation-of-the-law perceptions since it was considered by the International Military Tribunal in Nuremberg to be part of customary international law, crystallizing and referring to it. It is an idea that is common in the Global Pact for the Environment, but is also present in other legal texts,⁶⁰ as will be examined later in this article.⁶¹ The Nuremberg Tribunal's findings, despite the fact that their accuracy is doubted, form part of the timeless debate on whether multilateral treaties may constitute evidence for the existence of customary international law.⁶² The decision itself classified the Kellogg-Briand Pact in the category of those treaties that 'in many cases . . . do no more than express and define for more accurate reference the principles of law already existing.'⁶³ Consequently, the tribunal concluded that there was a rule of customary law reduced to written form in the pact itself. There would be more cases later that confirmed the idea that a treaty may integrate and highlight customary law,⁶⁴ but this decision is the most tangible example of the gravity that a pact may have by enclosing customary principles.

As well as being a generally accepted form for a treaty, a pact also has the solemnity that entails binding normativity. It is 'an agreement espoused as a solemn promise without reservation among like-minded states that share common concerns whereby they purposively commit to undertake specific actions to achieve a certain objective to their mutual benefit,'⁶⁵ but it also echoes the forms of a 'covenant' or a 'charter.' These forms have served the same purpose as a pact many times before in the history of international law—that is, to incarnate agreements of a global scale, which impose not only legal, but also moral, obligations on the parties.⁶⁶ It is widely known that a charter is used as a title for instruments that mark a groundbreaking change and bear innovative messages; the Charter of the United Nations and the Charter of the Organization of American States indicate the establishment of a whole new order and hold a special legal value. It is memorable that, during the negotiation process leading

⁵⁹ Kellogg-Briand Pact 1928, 94 LNTS 57. Randall Lesaffer, 'Kellogg-Briand Pact' in *Max Planck Encyclopedia of Public International Law* <<http://opil.ouplaw.com/view/10.1093/law:epil/9780199231690/law-9780199231690-e320>>.

⁶⁰ Inter-American Court of Human Rights, *Advisory Opinion OC-23/17 Requested by the Republic of Colombia, 'Environment and Human Rights'* (2017).

⁶¹ See section III.3 in this article.

⁶² RR Baxter, 'Multilateral Treaties as Evidence of Customary International Law' (1965–6) 41 Br YB Intl L 275 at 279.

⁶³ *Judgment of the International Military Tribunal for the Trial of German Major War Criminals*, Nuremberg (1946), Cmd 6964, 40.

⁶⁴ See eg WTO, *EC – Measures Concerning Meat and Meat Products (Hormones)*, Appellate Body Report, WTO Doc AB-1997-4 (1998).

⁶⁵ Kotzé, *supra* note 53 at 815.

⁶⁶ Shane D Nicholls, 'The Global Covenant: The Earth Charter and the Concept of Covenants in International Law and Environmental Governance' (2010) 14 New Zealand J Env'tl L 103.

to the adoption of the Rio Declaration, the United States repeatedly refused for the text to be named a 'Charter' and adhered to 'Declaration' instead, seemingly as though, if 'Charter' had been chosen, the title would have raised 'unrealistic expectations about the document's legal content.'⁶⁷ It is a strong indication of the semantics that a choice could have and also proves that the Club des Juristes has selected wisely; this effort has to be called a 'pact' for its content to make a difference.

To sum up, it has been made clear that those who have worked on the proposed Global Pact preferred this form because, otherwise, the environmental principles would not be vested with the necessary formality and importance. A pact is ethically, politically, and legally charged and carries the expectations that the states may have with respect to the democratic values that the international community needs. It is the most suitable form for the environmental governance, as the well-known principles incorporated in soft-law statements will now obtain binding force.

2. Goals of the Proposed Pact

The legal think tank Club des Juristes had three major goals in mind when it started this initiative. First of all, the Global Pact was intended to fill in the gaps of the previous legal instruments that were unable to achieve integration in the field of environmental law. Second, it was also aimed at environmental protection through adjudication; it has already been largely known that the pact provides for a justiciable right—the right to the environment.⁶⁸ Third, the Global Pact was also something that was, in a sense, groundbreaking for international law as it involved both state and non-state actors in the process of environmental protection. It is an innovative approach, adopted also in two other draft compacts: the Global Compact on Refugees⁶⁹ and the Global Compact for Safe, Orderly and Regular Migration.⁷⁰ The participation of civil society in the construction of the Global Pact is vivid and has had a major impact on the normative character of the text. It has contributed to the transformation of the fundamental principles into norms that can be adopted by private actors at the subnational level.⁷¹ Of course, there are many things that must be done for an international treaty to penetrate the sphere of private governance, but a Global Pact for the Environment will begin the process.

⁶⁷ Jeffrey D Kovart, 'A Short Guide to the Rio Declaration' (1993) 4(1) *Colorado J Intl Envtl L & Pol'y* 119.

⁶⁸ Global Pact for the Environment, *supra* note 48, art 1.

⁶⁹ Global Compact on Refugees, Final Draft (2018) <www.unhcr.org/events/conferences/5b3295167/official-version-final-draft-global-compact-refugees.html>.

⁷⁰ Global Compact for Safe, Orderly and Regular Migration, Final Draft (2018) <https://refugees-migrants.un.org/sites/default/files/180711_final_draft_0.pdf>.

⁷¹ Maria Gavouneli, 'Legislating by Compacts? The Legal Nature of the Global Compacts' *EJIL Talk* (2018) <www.ejiltalk.org/legislating-by-compacts-the-legal-nature-of-the-global-compacts/>.

(A) *Cohesion of Environmental Law*

During the past quarter century, international environmental law has proceeded in a sector-specific approach that has led consequently to treaties that are well tailored to address specific challenges⁷² but that are not appropriate to form a cohesive 'environmental code.' This has happened, to some extent, because these treaties entail an abundance of diverse technical norms that could not provide a complete legal framework that is both integrated and self-contained. Moreover, while this 'piecemeal' ad hoc approach has resulted sometimes in certain binding commitments from member states, it has not provided for the 'globally accepted substantive human right to a good or clean and healthy environment,' which the Stockholm Declaration invoked back in 1972.⁷³ Accordingly, the victims of the various environmental harms have had to be resourceful, resorting to other rights such as the right to health, food, water, and an adequate standard of living, in order for a right to the environment to be implied.⁷⁴

The proposed Global Pact promises to bring normative coherence to international environmental law through the fact that it may be a binding instrument.⁷⁵ The pact's antecedents include, as mentioned, the Stockholm Declaration, the Rio Declaration, the 1992 Agenda 21 (a mainly soft instrument that almost became part of the developmental processes in most UN countries),⁷⁶ and the body of the Sustainable Development Goals, which did not have any binding force, although they bore indicative value, presenting the international community's tendency regarding the solutions of a particular problem. In this way, the Rio Declaration, for example, made clear the intention of states to integrate environmental protection in their national policies. But, nowadays, merely depicting a major trend is no longer useful; states have to act in a particular way, and this is possible only through a binding treaty. The Global Pact will incorporate all of the regulations needed for a framework of environmental protection and will bring legal uniformity. The provisions will now be enlisted in one text, characterized by the same spirit and having universal force. The purpose of unity will be served.

(B) *A Human Right to the Environment*

Until today, many international and regional human rights instruments have adopted various formulations that refer to what could be read as a right to the

⁷² Eg, Paris Agreement, Decision 1/CP.21, Annex, UN Doc FCCC/CP/2015/10/Add.1 (29 January 2016).

⁷³ Stockholm Declaration, *supra* note 1, preamble, no 1.

⁷⁴ See eg ECtHR, *Kyrtatos v Greece*, Appl no 41666/98 (2003); ECtHR, *Fadeyeva v Russia*, Appl no 55723/00 (2005).

⁷⁵ Of course, as it is aforementioned the fact that the instrument will be binding does not guarantee any tangible result. It is the application of this instrument that will lead to the solution of the problems.

⁷⁶ Agenda 21, 1992, UN Doc A/CONF. 151/26 (1992).

environment. The right *per se* cannot be said to exist, but the context of many legal documents could be interpreted as indicating such a right. The first such effort was noted in the Stockholm Declaration in 1972, where the states invoked a subject link between human rights and a certain level of environmental protection. The Stockholm Declaration required basic environmental health as a condition for the proper enjoyment of the other human rights. After that, the African Charter on Human and Peoples' Rights was the first legal instrument to express such a need,⁷⁷ while both the Organization of Economic Cooperation and Development⁷⁸ and the Council of Europe⁷⁹ have underlined the strong need for establishing a right to a healthy environment.

This goal is also what the latest effort of the UN illustrates; the draft preliminary text for the proposed Global Pact for the Environment, by bridging the human rights area with the international environmental law field, entrenches a right to an ecologically sound environment and respectively sets out a duty of states and other actors to take care of the environment. Its whole structure follows the existing international human rights covenants but is aimed at a 'third generation' of fundamental rights. Since the right will be justiciable, there will be direct protection for the Global Pact's subjects, according to the principle of horizontality.⁸⁰

However, there is another clear declaration on a right to a healthy environment that has been developed—namely, the regional Organization of American States, which included *expressis verbis* a right to the environment in the Protocol of San Salvador.⁸¹ The operative parts of the Protocol of San Salvador affirm the progressive nature of the right and the perspective given to the respective obligations. This explains, to a great extent, the recent advisory opinion from the Inter-American Court of Human Rights, which offered a new assessment of the intersection between human rights and environmental protection.⁸² The advisory opinion affirmed the existence of a right to a healthy environment and stressed the link between a well-balanced human life and an ecologically sound environment. Its findings have been, along with the respective provisions of the Global Pact, the leading initiatives for the establishment of such a right, indicating the strong need for this provision. They are efforts depicting the powerful

⁷⁷ African Charter on Human and Peoples' Rights, 1981, 1520 UNTS 217.

⁷⁸ Organization for Economic Cooperation and Development, Responsibility and Liability of States in Relation to Transfrontier Pollution, reprinted in (1984) 13 *Env'tl Pol'y & Law* 122.

⁷⁹ The Council of Europe has had various proposals under study since 1970 that would add a right to the environment to the protections of the European Convention on Human Rights. See eg the proposals made by the Parliamentary Assembly in 1972, 1973, and 1987, and the efforts for modification of the European Social Charter.

⁸⁰ See Inter-Am Ct HR, *Velásquez Rodríguez v Honduras*, Series C, No 4 (1988).

⁸¹ Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights, 1988, 28 ILM 156 (1989), art 11.

⁸² *Advisory Opinion OC-23/17*, *supra* note 61.

tendencies towards this direction, confirming the fact that civil society is ready for such a step forward.

3. Towards a Uniform Interpretation

The second goal that the proposed Global Pact could serve seems to be the uniformity of interpretation among the different kinds of law. The fragmentation of international law has been a reality for many years. It is a reality with clearly negative aspects since such fragmentation affects the systemic unity of the law and the possibility for unhampered references to the jurisprudence. Except for the ICJ, which is the 'general competence' court of international law, almost every other judicial body has its own interpretation of the basic concepts of international law. This is the pathology of international law; it does not indicate the inherent resilience of international law to grapple with changing times and challenges. Instead, it denotes inconsistency and partiality. It is a long-standing malfunction caused by the uneven development of the various speciality fields; human rights protection, investment arbitration, and environmental law are only a few of the many examples.

During the course of years, different areas of law have been evolving independently, responding to diverse needs emerging in the various points of time. The phenomenon of the 'compartmentalization' of the law has appeared and has continued to thrive through time.⁸³ In this sense, public international law has ended up being characterized by anarchy,⁸⁴ which has had an impact even on the judicial bodies of 'general competence,' such as the ICJ. Respectively, numerous different fora were established to address sectoral matters: trade, development assistance, oceans, investment protection, and human rights. But, on the other hand, these partiality-centred institutions have been called upon increasingly to address cross-cutting issues of general international law (for example, extraterritoriality or reservations to treaties). And since they are challenged to apply norms arising from different subject matter areas, it is easily understood that this directly affects the interpretation of the law, as each legal 'regime' seeks to resolve any normative conflicts by favouring its own body of rules.

For example, this phenomenon was recently observed in the judgments of many trade panels in the framework of the World Trade Organization (WTO) system that came to a decision that was mostly pro-market. And, despite the fact that the WTO itself has expressed the necessity for a dialogue between environment, energy, and trade,⁸⁵ it is still debatable if the WTO is able to address sensitive environmental issues. The most recent example was the findings of Appellate Body in *Certain Measures Relating to Solar Cells and Solar*

⁸³ David Harris, *Cases and Materials on International Law* (1991) at 17.

⁸⁴ According to Koskenniemi, '[p]ublic international law hovers between cosmopolitan ethos and technical specialization.' Martti Koskenniemi, 'The Fate of Public International Law: Between Technique and Politics' (2007) 70 *Modern L Rev* 1.

⁸⁵ See 'Lamy Calls for Dialogue on Trade in Energy in WTO' *WTO News* (29 April 2013) <http://wto.org/english/news_e/sppl_e/sppl279_e.htm>.

Modules.⁸⁶ There, the Appellate Body ruled on the compatibility of the subsidies channelled through government to the domestic solar cell sector. It is a positive development that the WTO, blamed for having a 'bad environmental record' many times before,⁸⁷ has started to deal with these subjects in a substantial way, but it has been vigorously argued that the outcome would have been quite different if the Global Pact for the Environment had been in place, thus, forcing the WTO to make a decision that was more harmonized with other environmental obligations, such as those circumscribed, for example, by the Paris Agreement.⁸⁸

4. Interrelationship among Areas of Law

The interrelationship between the different kinds of rules of international law is governed by the 1969 Vienna Convention on the Law of the Treaties (VCLT).⁸⁹ The VCLT, traditionally, is the most appropriate tool for ascertaining the rules that govern a questionable relationship. The regulative 'umbrella' of the VCLT addresses the problems arising between two or more treaties concerning the same subject matter;⁹⁰ a treaty and *jus cogens* rules;⁹¹ and a treaty and other rules of international law, including customary rules.⁹² Regardless of this set of rules, however, the ICJ confirmed in *Case Concerning Military Activities in Nicaragua* that a rule can co-exist in a customary and treaty status at the same time, and it was this decision that paved the way for the consolidation of the status of custom.⁹³

A. The Interpretative Tool: The VCLT

The most important problems regarding cross-interpretation seem to appear regarding treaty interpretation. And while Article 31(1) stresses the principle of good faith and Article 31(2) refers to the contextual material, Article 31(3) has always been more obscure, which is the reason for the courts being reluctant to invoke it. According to Article 31(3)(c), while interpreting a treaty, 'any relevant rules of international law applicable in the relations between the parties' should also be taken into account.⁹⁴ This makes clear that, in the absence of a treaty crystallizing environmental principles, the interpreting tool of Article 31(3)(c) is

⁸⁶ *India – Certain Measures Relating to Solar Cells and Solar Modules*, Appellate Body Report, WTO Doc WT/DS456/AB/R (2016) <www.wto.org/english/tratop_e/dispu_e/cases_e/ds456_e.htm>.

⁸⁷ Eric Neumayer, 'The WTO and the Environment: Its Past Record Is Better Than Critics Believe, but the Future Outlook Is Bleak' (2004) 4 *Global Env'tl Politics* 1.

⁸⁸ Paris Agreement, *supra* note 73.

⁸⁹ Vienna Convention on the Law of Treaties, 1969, 1155 UNTS 331 [VCLT].

⁹⁰ *Ibid.*, art 30.

⁹¹ *Ibid.*, art 53.

⁹² *Ibid.*, arts 31, 32.

⁹³ *Military Activities*, *supra* note 19.

⁹⁴ VCLT, *supra* note 90, art 31(3)(c).

rendered useless. Currently, adjudicators clarify any obscurities in environmental law litigation by taking into account customary international law. However, since the Global Pact for the Environment is drafted as a binding treaty incorporating these widely accepted customary principles, there is a double purpose served: both the crystallization of this custom and the invocation of a treaty through the general rule of interpretation of Article 31.

Article 31(3)(c) is considered to be a 'principle of integration.'⁹⁵ It is considered to have a potentially generic application, which could encompass the relationships between the various areas of the law and diverse norms, including human rights, development, trade, environment, and even the law for sustainability. It appears to be the only tool available under international law to construct a general international law by reconciling norms arising in treaty and custom across different subject matter areas. If the Global Pact on the Environment, which is now in the stage of a draft text, becomes a treaty signed by willing states, the rule of application in Article 31, which imposes some kind of hierarchy on the international law sources, will also be used in the environmental field.

The ICJ has also received many requests for the interpretation and application of treaty rules arising in one area of the law by reference to customary law coming from other areas of the law. In 1995, the UN Secretary-General commenced proceedings before the Court,⁹⁶ leading to the advisory opinion in *Legality of the Threat or Use of Nuclear Weapons*, where the ICJ developed a number of arguments as to the relationship between, *inter alia*, human rights and environmental obligations.⁹⁷ Despite the fact that the Court was slightly opaque, it proceeded to accept a degree of cross-fertilization by declaring that customary law prohibits transboundary environmental harm. Subsequently, the Court was called upon to interpret a treaty that provided for the construction of two barges along the Danube, in a case with analogous environmental concerns, the *Case Concerning the Gabčíkovo-Nagymaros Project*.⁹⁸

Gabčíkovo-Nagymaros raised once again the issue of the relationship between treaty and custom but under a different prism; it examined these issues diachronically—that is, across the spectre of time. Through the ICJ's equivocal approach to the parties' claims,⁹⁹ it became apparent that the bench was torn between the competing interests of legal certainty, on the one hand, and environmental

⁹⁵ Philippe Sands, 'Treaty, Custom and the Cross-Fertilization of the International Law' (2014) 1 Yale Human Rights and Development Journal, at 95.

⁹⁶ *Nuclear Weapons*, *supra* note 20, Request for Advisory Opinion.

⁹⁷ *Ibid.*

⁹⁸ *Case Concerning the Gabčíkovo-Nagymaros Project (Hungary/Slovakia)*, Judgment, [1997] ICJ Rep 7.

⁹⁹ At one point, it appears to take the view that new norms (conventional or customary) could be incorporated into the 1977 treaty only by agreement of the parties. Later in the judgment, however, the Court expresses the view that in looking to the project's future 'current standards must be taken into consideration.'

protection, on the other,¹⁰⁰ which were necessarily in conflict when the opposed interests they represented collided.

From the various examples taken from the case law, one can arrive at the following conclusions. First of all, the ICJ's docket has always offered proof that the relationship between custom and treaties is present, alive, and useful. The cross-fertilization between customary norms and signed treaties is a reality that no one can deny. Second, the judicial bodies are very much aware of this reality; they do know that this conjunction is inescapable, inasmuch the sub-sectors of international law are not in hermetical isolation. The different kinds of law are quite 'fluid' and can be prone to co-mingle, so the way of the future lies in creating networks of authorities in different legal areas that cooperate in a substantial way rather than merely offering 'assistance' to one another.¹⁰¹ The problem is that, despite the fact that courts and tribunals recognize these inter-relationships, they have chosen to deal with them on an ad hoc basis. After the Inter-American Court of Human Rights' advisory opinion, many began to hope for this to change, but it was not until now that we could begin to see it happen. Finally, these cases offer some conclusions for the judicial bodies themselves. And it would be irrational not to recognize that they all have marked important progress in the cross-sectoral approach, thus promoting the overall improvement of international law.

B. Custom as a Source of International Environmental Law

The Inter-American Court of Human Rights' advisory opinion was the first to underline that the right to the environment is an autonomous right carrying individual and collective connotations as well as protecting integral, crucial parts of the environment. It was also the first decision to affirm what has been the practice of all courts and tribunals for many years: that custom can serve as a source for international environmental law.¹⁰² Customary international law might be shapeless and conceptually 'fluid,' but the courts consistently consider it to be a source of international law. An approach that precludes the custom or denies seeing its prevailing role is incompatible with the ICJ Statute itself¹⁰³ and with the general doctrine regarding the sources of international law.¹⁰⁴ The causality linkage between the concept of custom and a possible human right

¹⁰⁰ Sands, *supra* note 96.

¹⁰¹ Catherine Kessedjian, 'Dispute Resolution in a Complex International Society' (2005) 29(3) Melbourne UL Rev 765.

¹⁰² See *Pulp Mills*, *supra* note 21; *Whaling in the Antarctic (Australia v Japan: New Zealand intervening)*, Judgment, [2014] ICJ Rep 226; *Certain Activities Carried Out by Nicaragua in the Border Area (Costa Rica v. Nicaragua)* and *Construction of a Road in Costa Rica along the San Juan River (Nicaragua v Costa Rica)*, Judgment, [2015] ICJ Rep 665.

¹⁰³ Pellet, *supra* note 13.

¹⁰⁴ Hugh Thirlway, *The Sources of International Law* (2014).

to the environment is a field that will be widely investigated in the future. If a possible human right to a (decent, healthy, or sound) environment is to be established, then it would have to be investigated if it is founded directly on the architecture of the custom: is there enough state practice and *opinio juris* among states for this to be deemed accurate?

Treaties are an important instrument for states to address possible environmental problems;¹⁰⁵ they also seem easier to interpret and implement. But what should not be disregarded is that treaties traditionally are created through a process of political negotiation leading to a state's final consent. Since, in the course of such a process, some states are proven to be more influential than others, treaties may become instruments for the powerful to assert their rights against the powerless. The non-written sources of international law may be proven to be more equitable; changes in state practice may lead to a broader implementation of international law. Custom requires a continuous consistency that impels every state, even the powerful ones, to act in a particular manner, even if it is against its interests. In some way, a balance is achieved between state sovereignty and international community interests.

The jurisprudence of the ICJ has recognized in many cases the way in which customary rules are linked to the concept of the territorial sovereignty of states in the framework of environmental protection. The exercise of due diligence in preventing significant environmental harm is such a paradigm; the no harm principle is one of the most well-known customary norms concerning environmental protection. Thus, bearing in mind the principles of sovereign equality and territorial sovereignty of states, the state of origin has the right to engage in activities within and outside its own territory in order to avoid environmental harms.¹⁰⁶ But, when a state is obligated to take all of the necessary steps to prevent environmental harm, must it also provide for a right to the environment, thinking in a framework of state-centrism?¹⁰⁷ If so, the environment would be protected in a bidirectional way—for its own sake as well as for the sake of the people living in it. Consequently, the question that arises is whether the environment itself could be deemed worthy of protection, irrespective of whether or not the state's sovereignty is injured.¹⁰⁸

This contradiction was aptly depicted in the *Corfu Channel* case, where the ICJ, of course, did not judge on environmental issues but, rather, grounded the

¹⁰⁵ Jutta Brunnee, 'The Rule of International (Environmental) Law and Complex Problems' in Heike Krieger, Georg Nolte, and Andreas Zimmermann, eds, *The International Rule of Law: Rise or Decline?* (2017).

¹⁰⁶ *Certain Activities Carried Out by Nicaragua in the Border Area*, *supra* note 103 at 3, para 8, dissenting opinion of Judge Joan Donoghue.

¹⁰⁷ Yuval Shany, 'The Universality of Human Rights: Pragmatism Meets Idealism' (Paper presented at the JBI Human Rights Lecture, Hebrew University of Jerusalem Legal Research Paper no 29, 2018).

¹⁰⁸ Jorge E Vinuales, 'The Contribution of the International Court of Justice to the Development of International Environmental Law: A Contemporary Assessment' (2008) 32 *Fordham Intl LJ* 232.

obligations breached by the Albanian authorities on general international law.¹⁰⁹ This is where the first notion of the idea of Principle 21 of the Stockholm Declaration, which addresses the limits of transboundary damage, can be detected. The possible right to the environment itself may be deemed as an extension of this state obligation, as it expands the protection to the direction of right to individuals.

Moreover, the need to provide for a human right to the environment may be also drawn by other customary obligations, including the obligation to conduct an environmental impact assessment, which was mentioned in the landmark ICJ case *Pulp Mills on the River Uruguay*.¹¹⁰ By articulating this obligation for the first time, the Court stressed that a state's economic development cannot be lawfully exercised without regard for the detrimental impact on the environment or human rights.¹¹¹ Through this declaration, the ICJ called for the protection of the natural habitat, but the purpose is twofold: safeguarding both this habitat as well as the individuals surrounded by it.

The advisory opinion of the Inter-American Court of Human Rights, although it did not refer to it explicitly, invoked a human right to a healthy environment in an innovative way. As a tool of interpretation, it also referred to custom as a source of environmental obligations, underlining its overarching and regulative role. Would it be the basis for establishing a human right to a healthy environment on the grounds of the different customary obligations imposed upon states? The generality and flexibility of international customary rules would be useful for satisfying the needs of a large portion of the population worldwide; an environment of a certain standard affects not only human life and health but also dignity, equality, and education. The proposed Global Pact for the Environment seems to contend the same notions; it attempts to embody customary principles in order to bolster a right to the environment and a duty for states to behave in an environmentally sustainable way. It seems that the practice of two international systems—one regional and one global—meet where human needs are imperative; at the end of the day, law responds to reality and its order.

IV. CONCLUSION

As we saw, the field of environmental law has always been a special one: a distinct legal area that was developed in its own time framework, after the

¹⁰⁹ The International Court of Justice further observed: 'Such obligations are based ... on certain general and well-recognized principles, namely: elementary considerations of humanity, even more exacting in peace than in war; the principle of the freedom of maritime communication; *and every State's obligation not to allow knowingly its territory to be used for acts contrary to the rights of other States*' [emphasis added]; see *Corfu Channel*, Judgment on Preliminary Objection, [1948] ICJ Rep 15, para 22.

¹¹⁰ *Pulp Mills*, *supra* note 21.

¹¹¹ Alan D Boyle, 'Human Rights and the Environment: Where Next?', in Ben Boer, ed, *Environmental Law Dimensions of Human Rights* (2015) 201.

western *modus vivendi* had a destructive impact on our planet. The legal effect of many of the legal texts adopted has been doubted many times in the past—environmental law was indisputably the realm of the soft law attempts. Consequently, the fact that the intentions of the Club des Juristes were challenged is not strange: many representatives of theory and practice thought the proposed Global Pact would not be a binding text. But, the think tank sought to contend that it could integrate the principles of customary law, the status of which was confirmed by both the academic circles and the jurisprudence many times before. So, since the real question is not if the proposed Global Pact is binding or not, but if it does integrate binding law, all the aforementioned answer that the Global Pact, if at all materializes, will have binding force. In fact, such a Global Pact could function as a framework convention, integrating all of the axioms that have been for all these years the guide for the resolution of any environmental dispute: they do already exist; the Global Pact will only offer the binding scheme. It may also treat matters that have largely remained unaddressed or have ‘fallen between the cracks’ of international instruments, taking the decisive step towards the future we desire and deserve, as the UN has underlined before. As Rachel Carson described in her revolutionary work *Silent Spring*:

[t]he history of life on Earth has been a history of interaction between living thing and their surroundings. To a large extent, the physical form and the habits of the Earth’s vegetation and its animal life have been molded by the environment. Considering the whole span of earthly time, the opposite effect, in which life actually modifies its surroundings, has been relatively slight. Only within the moment of time represented by the present century has one species—man—acquired significant power to alter the nature of his world.¹¹²

Let us hope that the proposed Global Pact, notwithstanding the outcome at the end of the UNGA-mandated Nairobi Process on 22 May 2019,¹¹³ if it ever materializes, could become the harbinger of hope for mankind to undo the damage hitherto caused to the planet Earth. It may be an intervention with a positive impact on us and on nature.

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12 Rachel Carson, *Silent Spring* (1962) at 12.

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13 See third substantive session of the *Ad Hoc* Open Ended Working Group towards a Global Pact for the Environment, 20–2 May 2019, UN Office at Nairobi, Kenya. For detailed summary and analysis, see (2019) 25(3) Earth Negotiations Bulletin <<http://enb.iisd.org/download/pdf/enb3503e.pdf>>.